

Jolie Rousse - Crew Waiver & Release Agreement

Jolie Rousse — Crew Waiver & Release Agreement

Vessel: Jolie Rousse — Lagoon 42 catamaran
Home Port: Sausalito, California
Owner/Skipper: Gerald
Minimum Age: Adults only — no person under 18 permitted as crew.

Crew Information

Field	Details
Crew Member Full Name	
Date of Birth	
Age (must be 18 or older)	
Nationality	
Passport No.	
Relationship to Owner/Skipper	
Email Address	
Phone Number	
Emergency Contact Name	
Emergency Contact Phone	
Known Allergies / Medical Conditions	
Current Medications	
Blood Type (if known)	
Medical Professional? (Y/N + specialty)	

The crew member is solely and entirely responsible for accurately and truthfully completing the above information. The Owner/Skipper does not verify and assumes no responsibility for the accuracy of the information provided.

Assumption of Risks, Waiver, Release & Indemnity Agreement

For valuable consideration, including the acceptance of my participation as a crew member aboard **Jolie Rousse**, a Lagoon 42 catamaran, I hereby agree to the following:

1. Representations and Warranties

I represent, warrant, and agree:

- (a)** That I am 18 years of age or older, and that no person under 18 years of age is or will be aboard Jolie Rousse as crew under this agreement.
- (b)** That I will comply with all rules, regulations, and instructions given by the Owner/Skipper of Jolie Rousse.
- (c)** That I understand sailing aboard Jolie Rousse involves offshore and coastal cruising, which may include but is not limited to: sailing, boating, use of dinghies, swimming, anchoring in remote areas, and social gatherings at marinas and anchorages. I understand that persons participating in these activities may consume alcohol, which may influence their conduct.
- (d)** That I am physically fit and know of no medical or health reason that I should not participate in sailing aboard Jolie Rousse or any related activities. I have disclosed all known medical conditions, allergies, and medications in the Crew Information section above. I am solely and entirely responsible for this assessment and disclosure.
- (e)** That it is my sole and exclusive responsibility to determine whether Jolie Rousse and her skipper are suitable for the voyage I am joining. If I am not qualified to make that determination, it is my responsibility to seek independent advice. The Owner/Skipper makes no representations or warranties regarding the vessel's suitability, condition, or safety.

2. Assumption of Risks — Crew Member is 100% Responsible

I understand that participation in sailing aboard Jolie Rousse carries with it certain inherent risks that cannot be eliminated regardless of the care taken to avoid injuries or death. I acknowledge and agree that I am **solely, entirely, and exclusively (100%) responsible** for voluntarily assuming all risks associated with my participation as crew aboard Jolie Rousse.

The specific injuries that may result from my participation include:

- (a)** Minor injuries such as scratches, bruises, and sprains;
- (b)** Major injuries such as loss of sight, joint or back injuries, heart attacks, and concussions; or
- (c)** Catastrophic injuries including paralysis and death.

I know, understand, and appreciate that these and other risks are inherent in sailing aboard Jolie Rousse, including but not limited to:

- Sudden changes in weather, sea state, and wind conditions
- Equipment failure (rigging, sails, engines, steering, electrical systems)
- Falls on deck, being struck by rigging or lines, or falling overboard
- Seasickness, dehydration, heat exhaustion, or hypothermia
- Marine life hazards (jellyfish, stingrays, etc.)
- Injuries while using the dinghy or while swimming
- Injuries sustained while ashore, including in foreign ports
- Limited or delayed access to medical care, especially in remote areas or foreign countries
- Risks associated with food provisioning and preparation aboard
- Risks associated with international travel, including crime and civil unrest in foreign countries

I assert that my participation is voluntary and that I am **knowingly and entirely (100%) assuming all such risks**. No person has forced, coerced, or pressured me to participate. I accept full and complete responsibility for my own safety, well-being, and decisions while aboard Jolie Rousse or engaged in any related activity.

3. Waiver, Release, Discharge and Covenant Not to Sue

I, for myself, my heirs, personal representatives, and assigns, do hereby **release, waive, discharge, and covenant not to sue** the Owner/Skipper of Jolie Rousse, and their family, heirs, personal representatives, and assigns (collectively, the "Released Parties") for any liability for any and all claims resulting in personal injury, accidents, illnesses (including death), and property loss arising from my participation in sailing aboard Jolie Rousse or any related activity, **whether or not caused by the active or passive negligence of the Released Parties**. I accept full and complete (100%) responsibility for all such risks and outcomes.

4. Indemnification and Hold Harmless

I agree to **indemnify and hold the Released Parties harmless** from any and all claims, actions, suits, procedures, costs, expenses, damages, and liabilities, including attorneys' fees, brought as a result of my involvement in sailing aboard Jolie Rousse or any related activities, and to reimburse them for any such expenses incurred.

5. Personal Responsibility for Safety

I understand and agree that:

(a) The safety of the vessel and her crew is the sole responsibility of the Owner/Skipper, who has the sole and exclusive authority to decide whether to start or continue any voyage, leg, or passage.

(b) It is **my sole and exclusive responsibility** to familiarize myself with the location and proper use of all safety equipment aboard Jolie Rousse, including but not limited to:

life jackets, flares, fire extinguishers, life raft, first aid kit, VHF radio, and emergency signaling devices.

(c) I will not participate in any voyage or activity aboard Jolie Rousse if I am under the influence of alcohol or drugs to the extent that it impairs my ability to safely perform my duties.

(d) I will follow all instructions from the Owner/Skipper regarding safety procedures, watch schedules, and crew duties.

(e) I am 100% responsible for my own person, conduct, and well-being at all times while aboard Jolie Rousse and during any related activity.

6. Medical Treatment Authorization

In the event of injury or illness, I authorize the Owner/Skipper and crew of Jolie Rousse to seek emergency medical treatment on my behalf, including the cost of evacuation by vessel, helicopter, or other means. I agree to be **solely and exclusively (100%) responsible** for all costs associated with such treatment and evacuation. I understand that medical care may be limited or delayed in remote areas and foreign countries, and I accept this risk entirely.

7. No Minors Permitted

I acknowledge and agree that **no person under 18 years of age is permitted as crew aboard Jolie Rousse**. I represent and warrant that I am 18 years of age or older. I further agree that I will not bring any minor aboard Jolie Rousse without the prior written consent of the Owner/Skipper, and that if any minor is permitted aboard under such consent, I am 100% responsible for that minor's safety and well-being at all times.

8. Severability

I agree that this Agreement is intended to be as broad and inclusive as is permitted by the laws of the State of California and that, if any portion is held invalid, it is agreed that the balance shall nevertheless continue in full force and legal effect.

9. Governing Law

This Agreement shall be governed by the laws of the State of California. Any action regarding the enforcement or interpretation of this Agreement shall be brought in the appropriate courts of California.

10. Acknowledgment of Understanding

I have read this Assumption of Risks, Waiver, Release, and Indemnity Agreement, **fully understand its terms**, and understand that I am giving up substantial rights, including my right to sue. I understand that I may consult with an attorney before signing this agreement. I acknowledge that I am signing this agreement **freely and voluntarily**, and intend by my signature to **completely and unconditionally release all liability to the**

greatest extent allowed by law. I confirm that I am 100% responsible for accepting all risks associated with sailing aboard Jolie Rousse.

11. Photo and Communication Release

I hereby grant permission to the Owner/Skipper to transmit or release communications from or to Jolie Rousse relating to the progress of the yacht and the welfare of her crew, and to use any photograph or video footage of me or the yacht for personal use, social media, or other purposes as deemed appropriate.

Acknowledgment and Signature

I have read and understood the above Assumption of Risks, Waiver, Release, and Indemnity Agreement and agree to its terms freely and voluntarily. I confirm that I am 18 years of age or older and that I am 100% responsible for accepting all risks associated with my participation as crew aboard Jolie Rousse.

Crew Member Signature:	_____
Printed Name:	_____
Date:	_____

Owner/Skipper Acknowledgment:

Gerald, Owner/Skipper of Jolie Rousse, confirms that this waiver has been completed and signed by the above-named crew member prior to departure.

Owner/Skipper Signature:	_____
Date:	_____

This waiver is a draft adapted from the Baja Ha-Ha Cruisers Rally waiver templates for use aboard Jolie Rousse. It is not a substitute for legal advice. Have it reviewed by a qualified maritime attorney before use.